

Tentative Rulings for August 26, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	DEMURRER ON 4TH AMENDED CROSS-COMPLAINT

Tentative Ruling:

GRANT all Requests for Judicial Notice.

OVERRULE the demurrer to the first and fourth causes of action. Res Judicata is inapplicable. The allegations of agency are sufficient to establish a duty to FNS. FNS's allegations that it suffered substantial economic damage are sufficient at this pleadings stage. The negligence claims are not barred by the economic loss rule.

SUSTAIN the demurrer to second and third causes of action, with 30 days' leave to amend. For Breach of Fiduciary Duty, FNS cites to no authority for the proposition that an insurance broker is a fiduciary of the insured. For Negligent Misrepresentation, FNS claims that Marsh represented that it would administer RIGHTSUM in a competent and professional manner. These statements reflect opinions regarding future events rather than existing facts, and as such are not actionable under a negligence theory. Moreover, in pleading fraud against a corporate entity, the Plaintiff must allege the name of the corporate agent who spoke and his or her authority to speak on behalf of the corporation. Here, FNS fails to name any agent, and hence this cause of action lacks the required specificity.

SUSTAIN the demurrer to the fifth and sixth causes of action, without leave to amend. Cross-Complainant has not provided a single document showing that Marsh is a party to any contract, including the Renewed WC Program Agreement, nor does it establish that other documents or representations were intended to function as contracts. FNS has had multiple opportunities to plead an actual enforceable contract but has failed to do so. Because FNS has not established the existence of a contract between itself and Marsh, it cannot establish a breach of the covenant of good faith and fair dealing that impliedly runs with the contract.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	MOTION FOR SUMMARY JUDGMENT ON 3RD AMENDED CROSS-COMPLAINT

Tentative Ruling:

DENY as moot.

Cross-Complainant filed a Fourth Amended Cross-Complaint (4thACC) on July 14, 2026. The 4thACC is now the operative Complaint in this action, superseding the Third Amended Cross-Complaint (TACC). The Motion for Summary Judgment addresses the

TACC, not the 4th ACC. “Because there is but one complaint in a civil action, the filing of an amended complaint moots a motion directed to a prior complaint.” (*S.C. v. Doe 1* (2025) 115 Cal.App.5th 365, 384.) Once a pleading has been superseded, the court may not sustain a demurrer or grant summary adjudication on a cause of action contained in a previous complaint. (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477.) The party seeking summary adjudication must file a subsequent motion or renew the earlier motion if appropriate. (*Ibid.*) The issue of FNS’s failure to plead damages in the 4thACC is properly addressed at the hearing on the demurrer.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	MOTION FOR JUDGMENT ON THE PLEADINGS ON 3RD AMENDED CROSS-COMPLAINT

Tentative Ruling:

DENY as moot.

The Motion for Judgment on the Pleadings (MJOP) is to the TACC. For the reasons stated above, the Motion is denied without prejudice as moot.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504760	BARRAGAN vs GUZMAN	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

GRANT

The dismissal of Defendant Donald Mckinnon on 5/1/2026 is set aside.

Matter is set for an OSC Re: Dismissal for Failure to provide proof of service on Donald McKinnon, to be heard on: 9/21/2026, at 8:30am, D-4.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2505886	CINEMATIC CAPITAL CORP., vs WILLIAMS	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The hearing on the demurrer is ordered continued to 10/21/2026, at 8:30am, D-4. The parties are ordered to further meet and confer regarding the demurrer.

Here, the meet and confer efforts were inadequate. CCP § 431.41 requires that the parties meet and confer **via telephone, videoconferencing or in person** before the demurrer is filed. Counsel for moving Defendant declares that he sent a letter via email to Plaintiff's counsel outlining the alleged deficiencies in the Complaint, to which Plaintiff's counsel failed to respond. This is insufficient meet and confer.

Moving Defendant shall, at least 15 days before the continued hearing date, file a supplemental declaration stating the means by which the parties met and conferred, and identifying the remaining issues that the parties were unable to resolve.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600240	PIGG vs NORTH AMERICAN SAVINGS BANK, F.S.B.	MOTION TO VACATE JUDGMENT OF DISMISSAL ENTERED IN FAVOR OF NORTH AMERICAN SAVINGS BANK, F.S.B. AND FOR LEAVE TO FILE THE PROPOSED SECOND AMENDED COMPLAINT

Tentative Ruling:

DENY

Plaintiff alleges no ground for vacating the judgment. Plaintiff instead relies on proposed amendments to the complaint, but once judgment has been rendered, a plaintiff cannot amend her complaint unless the judgment is first vacated. Here, Plaintiff fails to show how the proposed amendments would cure the defects.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2602524	BERNIE'S MEATS LLC vs RINCON AMEZCUA	DEMURRER ON COMPLAINT

Tentative Ruling:

SUSTAIN the demurrer with 30 days leave to amend.

Breach of Duty of Loyalty

Plaintiff fails to allege how Rincon Amezcua breached the duty during his employment. Plaintiff only alleges that La Fe was formed while Defendant was still employed by Plaintiff—he does not allege that Defendant actually formed or worked for La Fe during his employment.

Aiding and Abetting

While the complaint alleges knowledge (Complaint Para. 90), it does not allege substantial assistance (another required element of aiding and abetting), other than the legal conclusion contained in Paragraph 91 of the Complaint.

Accounting

Plaintiff does not establish a relationship between the parties giving rise to a duty to provide an accounting.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR MARIA FERGUSON

Tentative Ruling:

GRANT